

ACME ROBOTICS, INC.

401(k) Retirement Savings Plan

Summary Plan Description

Plan Effective Date January 1, 2022

Document Version 2026.1 — Restated January 1, 2026

Plan Year Referenced 2026

This document is intended for distribution to all eligible employees of Acme Robotics, Inc.

1. Plan Sponsor Information

Plan Sponsor:	Acme Robotics, Inc.
EIN:	12-3456789
Plan Name:	Acme Robotics 401(k) Plan
Plan Number:	001
Plan Year:	Calendar year (January 1 – December 31)
Plan Year End:	12/31
Principal Office:	2400 Innovation Drive, Boardman, OR 97818

The Acme Robotics 401(k) Plan (the "Plan") is a tax-qualified defined contribution retirement plan established under Section 401(k) of the Internal Revenue Code. The Plan is intended to provide eligible employees of Acme Robotics, Inc. (the "Company" or "Employer") with a means of saving for retirement on a tax-advantaged basis.

2. Plan Administration

Role	Provider
Plan Administrator	Acme Robotics, Inc.
Recordkeeper	Legacy Recordkeeper
Third-Party Administrator (TPA)	Example TPA Services
Investment Advisor	Northstar Advisory Group
Payroll Provider	Gusto

Payroll is processed on a **bi-weekly** basis (26 pay periods per year).

3. Eligibility

To participate in the Plan, an employee must satisfy each of the following requirements:

- Be at least **age 21**, and
- Have completed **three (3) months of service** with the Employer.

Service is measured from the employee's date of hire. An employee who satisfies these requirements enters the Plan on the **first day of the month** following the month in which both requirements have been satisfied (monthly entry dates).

A new hire who has not yet completed 90 days of service is not eligible to make elective deferrals or receive employer contributions under the Plan.

4. Automatic Enrollment

The Plan provides for automatic enrollment of all newly eligible employees. Upon becoming eligible:

- An employee is automatically enrolled at a **default deferral rate of 3%** of eligible compensation on a pre-tax basis.
- The employee may, at any time, increase, decrease, or eliminate the deferral by submitting a deferral change election through the recordkeeper's portal.
- An employee may opt out entirely within 90 days of automatic enrollment and receive a refund of any deferrals already made.

4.1 Automatic Escalation

The Plan also provides for automatic escalation of deferral elections:

- Each plan year, an eligible employee's deferral rate is **automatically increased by 1%** of compensation.
- Automatic escalation continues until the participant's deferral rate reaches **10%** of compensation, at which point no further automatic increases are made.
- A participant may opt out of automatic escalation at any time.

Pending Amendment: A proposed amendment to increase the automatic enrollment default deferral rate from 3% to 4% is under board review. If adopted, this amendment would take effect **January 1, 2027**. Until adopted and effective, the current default rate remains 3%.

5. Employee Contributions

Participants may elect to make pre-tax elective deferrals, Roth elective deferrals, or a combination of both, subject to the IRS annual elective deferral limit (for 2026, \$23,500; additional catch-up contributions are available to participants age 50 and over).

Roth contributions are permitted under this Plan. Participants may direct any portion of their elective deferrals to a Roth account.

6. Employer Match

The Employer will make a matching contribution to the Plan on behalf of each eligible participant who makes elective deferrals during the plan year. The matching formula is as follows:

100% of the first 3% of compensation deferred, plus 50% of the next 2% of compensation deferred.

Under this formula, a participant who defers at least 5% of compensation receives the maximum match of **4% of compensation**. Examples:

Employee Deferral	Employer Match
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1%	1.0%
2%	2.0%
3%	3.0%
4%	3.5%
5% or more	4.0%

6.1 Vesting

Employer matching contributions are **immediately vested** at 100%. There is no service requirement to become vested in employer contributions under this Plan.

6.2 Plan Summary Table

Plan Feature	Provision
Plan Type	401(k) Defined Contribution
Eligibility	Age 21, 3 months of service
Entry Dates	Monthly
Default Deferral Rate	3%
Employer Match	Up to 6% of compensation
Vesting on Match	Immediate (100%)
Roth Permitted	Yes
Loans Permitted	Yes
Safe Harbor Plan	No

7. Safe Harbor Status

This Plan is **not** designated as a Safe Harbor 401(k) Plan. The Plan is subject to standard nondiscrimination testing (ADP/ACP testing) each plan year. While the Plan's employer match resembles Safe Harbor matching practices in form, the Plan has not been formally designated as a Safe Harbor Plan and the related notice requirements have not been adopted.

8. Participant Loans

Participant loans are permitted under the Plan, subject to the following terms:

- **Maximum number of loans outstanding at any time: one (1).**

- **Maximum loan amount: the lesser of (a) \$50,000 or (b) 50% of the participant's vested account balance.**
- Loans must be repaid through bi-weekly payroll deduction over a term not exceeding five (5) years (or up to fifteen (15) years if the loan is used to acquire the participant's principal residence).
- The interest rate on loans is the prime rate plus 1%, set as of the loan origination date.

9. In-Service Withdrawals and Distributions

The Plan permits the following in-service and post-termination distributions, subject to applicable plan and tax rules:

- Hardship withdrawals (subject to safe harbor hardship reasons under Treas. Reg. § 1.401(k)-1(d)(3))
- Age 59½ in-service withdrawals
- Rollover distributions to other qualified plans or IRAs upon termination of employment
- Required minimum distributions beginning at the applicable RMD age

10. Plan Sponsor Contact

Questions concerning the Plan, eligibility, contributions, or distributions should be directed to the Plan Administrator at the address listed in Section 1, or to the recordkeeper, **Legacy Recordkeeper**, via the participant portal.

11. Document Authentication

This Summary Plan Description has been prepared on behalf of the Plan Sponsor for distribution to eligible employees. Capitalized terms not defined herein have the meanings given in the underlying Plan Document.

EIN of Record: 12-3456798

Document Prepared: Q1 2026

Plan Year Referenced: 2026

This summary is intended to describe the principal provisions of the Plan. In the event of any conflict between this Summary Plan Description and the formal Plan Document, the terms of the formal Plan Document shall control.

— End of Summary Plan Description —